Pradeep Kumar Bajaj vs Smt. Sneh Lata Goel & Others on 6 July, 2018

Bench: Sudhir Agarwal, Shashi Kant

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HIGH COURT OF JUDICATURE AT ALLAHABAD


AFR

Reserved on 14.03.2018

Delivered on 06.07.2018

Court No. - 34


Case :- FIRST APPEAL No. - 788 of 2008


Appellant :- Pradeep Kumar Bajaj

Respondent :- Smt. Sneh Lata Goel & Others

Counsel for Appellant :- B.P. Singh,Vivek Kumar Singh

Counsel for Respondent :- Deepak Verma,A.K.Dwivedi,Amit Negi,Anjani Kumar Dubey,P.C.Jain


Hon'ble Sudhir Agarwal,J.
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Hon'ble Shashi Kant,J.

(Delivered by Hon'ble Sudhir Agarwal, J.)

1. This is a plaintiff's appeal filed under Section 96 of Civil Procedure Code (hereinafter referred to as "CPC") arising from judgment dated 12.04.2005 and decree dated 19.04.2008 passed by Sri A.K. Agarwal, Additional District Judge, Court No. 7, Varanasi rejecting plaintiff-appellant's (hereinafter referred to as 'plaintiff") plaint under Order VII Rule 11(d) CPC in Original Suit No. 176 of 2000.

2. Plaintiff filed plaint dated 24.04.2000 being Original Suit No. 176 of 2000 in the Court of Civil Judge (Senior Division), Varanasi. It had impleaded 7 defendants. Defendants-1 to 4 are members of a family being legal representatives of late Baij Nath Goel. Defendant-1, Smt. Sneh Lata Goel is the wife, Defendants-2 and 3, Alok Goel and Ashutosh Goel are sons and Defendant-4, Smt. Venu Jain is daughter of late Baij Nath Goel. Residential address of Defendants-1 to 4 mentioned in plaint is House No. 11, Anand Chowk, Dehradoon. Defendants-5 to 7 are relatives and belong to a different family inasmuch as Defendant-5 is Sardar Surendra Singh Johar, Defendant-6, Shani Johar is son of Defendant-5 and Defendant-7, Km. Samta Johar is daughter of Defendant-5. Address of Defendants-5 to 7 mentioned in plaint is House No. 125, A.B. Colony Kadru, Thana Agraura, District Ranchi (Bihar). Plaintiff himself claimed to be resident of House No. 2/285, Garden House Baka, Mohalla Pandeypur, Ward Sarnath, District Varanasi.

3. By means of aforesaid suit plaintiff seeks declaration that judgment dated 13.06.1990 and decree dated 20.06.1990 passed in Suit No. 154/145 of 1985/90, by Sub-Judge (Fifth), Ranchi, (State of Bihar) be declared void ab initio, illegal, having been passed without any jurisdiction and hence the same has no binding effect on plaintiff or her property mentioned at the bottom of plaint under Heads 'v' 'c' 'l' 'n', i.e., 'A' 'B' 'C' 'D'. A further declaration was sought that on the basis of aforesaid illegal judgment and decree neither any right or interest has been created or conferred upon anyone nor anyone can claim possession or otherwise right or interest on plaintiff's property in any manner nor anyone can alienate the said property. The property described at the bottom of plaint under heads 'A' 'B' 'C' 'D' reads as under:

> en **v** edku uEcjh lka- 2@285 **xkMZsu gkml** okdk ekStk ik.Ms;iqj gYdk lkjukFk] ftyk&okjk.klhA en **c** edku uEcjh Mh-15@81 o Mh-15@82 okdk eksgYyk n'kk'oes/k gYdk n'kk'oes/k 'kgj okjk.klhA en **l** edku uEcjh Mh-5@57 okdk eksgYyk n'kk'oes/k gYdk n'kk'oes/k 'kgj okjk.klhA en **n** edku uEcjh lh-26@1,] x.ks'k ckx gYdk psrxat] 'kgj okjk.klhA

4. Plaint case set up by plaintiff is that disputed property is ancestral property earlier owned by plaintiff's father, Rai Sri Krishna, who died without any male coparcener in the family and, therefore, property was inherited by plaintiff being one of the three daughters of late Rai Sri Krishna. Property described under head 'A' came to be owned by plaintiff in view of judgment in suit filed under Section 229B of U.P. Zamindari Abolition and Land Reforms Act, 1950 (hereinafter referred to as "Act, 1950") in 1980. It was given Municipal Registration No. 2/285 and plaintiff is shown as owner and in possession of said property. Property under head 'B' and 'C' of plaint was purchased by plaintiff vide registered sale deed dated 18.07.1966 and property under head 'D' came to be owned by plaintiff in view of retirement deed dated 10.08.1982 recorded by late Rai Sri Krishna. Remaining movable and immovable property also came to be succeeded by plaintiff in view of Will dated 19.11.1980, executed by Sri Rai Sri Krishna and after his death she is the owner and in possession of entire movable and immovable property of late Rai Sri Krishna. Besides aforesaid property, late Rai Sri Krishna had no property in Varanasi and in particular in District Ranchi, State of Bihar. Defendant-5, Sardar Surendra Singh Johar was an employee of Rai Sri Krishna. He is a very cruel and manipulated kind of person. Earlier with an intention to usurp entire property of Rai Sri Krishna he eloped plaintiff's younger sister, Smt. Saroj Rani and married her under the

provisions of Special Marriage Act, 1954. After marriage Defendant-5 and Saroj Rani started residing in District Ranchi (Bihar). Apprehending mischief on the part of Defendant-5, Rai Sri Krishna already made arrangement of his movable and immovable property and did not continue any relation either with Defendant-5 or Smt. Saroj Rani, younger sister of plaintiff.

5. Rai Sri Krishna died on 04.10.1982. Defendant-5 played fraud and making false statement that Araji No. 184, Kasra No. 51, area 4095 acres land situate at Mauja Arud, Thana 42 (Barmu), Pargana Khukhra, District Ranchi (Bihar) is a property of late Rai Sri Krishna though it was a forest land but making false assertions he filed Suit No. 154 of 1985, Saroj Rani Vs. Rani Brijmani and others and in a fraudulent manner got an ex parte decree passed vide judgment dated 13.06.1990. Since late Rai Sri Krishna neither owned any property in District Ranchi (Bihar) nor Court at Ranchi had any jurisdiction particularly when land belong to forest department, therefore, judgment dated 13.06.1990 in Original Suit No. 154 of 1985 is clearly a nullity, being wholly without jurisdiction and having been obtained by fraud played by Defendant-5, it was not binding on plaintiff in the present case. Defendant-5 further on the basis of judgment dated 13.06.1990 filed Execution No. 145/1990 in the Court of Sub-Judge, Ranchi (Bihar) and during execution proceedings got plaintiff also substituted and without any information or notice showing himself as caretaker of plaintiff and others, took possession of property under head 'D' of plaint with the help of unsocial elements. Defendant-5 also persuaded other defendants in his fraudulent act and got mutation in respect of property under head 'A' 'B' and 'D' without any knowledge of plaintiff. However, mere mutation does not confer any title upon Defendant-5 if it was not otherwise vested in him. Since plaintiff's father had no property in District Ranchi (Bihar), therefore, judgment in Suit No. 154 of 1985 passed by Sub-Judge, Ranchi being nullity, is of no consequence and would not confer any right upon Defendant-5 to claim any right over property in dispute in view of aforesaid illegal judgment. Now defendants are trying to take possession of property mentioned at the bottom of plaint and such attempt was made alongwith some unsocial elements on 25.03.2000, therefore, suit in question is filed seeking a declaration that judgment and decree passed by Sub-Judge, Ranchi in Original Suit No. 154 of 1985 is a nullity, being wholly without jurisdiction, and be declared accordingly.

6. Defendants-1, 2 and 3 after notice put in appearance in the Court of Additional District Judge, Varanasi and filed an application under Order VII Rule 11 CPC, seeking rejection of plaint as barred by Section 21A CPC. It is stated that plaintiff appeared in the suit filed at Ranchi (Bihar) but thereafter absented, therefore, judgment was passed ex parte. In that view of the matter, suit is now barred by Section 21A, hence plaint is liable to be rejected under Order VII Rule 11(d) CPC.

7. This application and objection raised on behalf of Defendants-1, 2 and 3 have been considered by Court below and being satisfied that perusal of plaint makes it clear that it was barred by Section 21A CPC, it has rejected plaint by referring to Order VII Rule 11(b) and (d) CPC.

8. There is one more development in the matter. Appeal in question, in fact, has not been filed by plaintiff herself, i.e., Km. Rai Pushp Lata but it has been filed by Sri Pradeep Kumar Bajaj son of late Rama Autar Bajaj, alleging that he purchased land in dispute from Km. Rai Pushp Lata vide sale deeds dated 18.03.2002 and 22.07.2002 during pendency of suit in Court below and entering into the shoes of plaintiff, is entitled to prosecute matter in appeal. He has also filed an application under

Order 1 Rule 1 CPC to allow him to join as plaintiff. Said application was allowed by this Court's order dated 23.05.2012 and this is how this appeal has been filed and being prosecuted by Sri Pradeep Kumar Bajaj, a subsequent purchaser of disputed property from original plaintiff, Km. Rai Pushp Lata who filed plaint in Court below and plaint was dismissed vide judgment and order dated 12.04.2005. Reason for non impleadment of Pradeep Kumar Bajaj before Court below has been explained in the affidavit accompanying application filed under Order 1 rule 1 CPC stating that Km Rai Pushp Lata did not inform appellant about pendency of any litigation with regard to disputed property and it was sold by representing herself to be an absolute owner which fact stood verified from Municipal Record and, therefore, appellant purchased property after due care and diligence of title on record and is a bona fide purchaser.

9. Sri B.P. Singh, learned Senior Advocate argued that judgment obtained by Defendant-5 from the Court of Sub-Judge, Ranchi (Bihar) is on account of fraud and misrepresentation and, therefore, it is void ab initio; Section 21A is not applicable in the case in hand; and, Court below has erred in law in rejecting plaint under Order VII Rule 11 Clause (b) and (d) CPC.

10. Before proceeding on merits of matter, we find it appropriate to examine the facts and circumstances in which judgment has been passed by Sub-Judge, Ranchi (Bihar). Suit No. 154 of 1985 was filed in the Court of Sub-Judge, Ranchi (Bihar) by Smt. Saroj Rani impleading Rani Brijmani as Defendant-1, Smt. Sneh Lata as Defendant-2 and Km. Rai Pushp Lata as Defendant-3. Aforesaid suit was filed claiming 1/4 share in entire property left by late Rai Sri Krishna mentioned in the schedule of plaint, filed before Sub-Judge, Ranchi. Notices were received by said three defendants from Ranchi Court. They also appeared in Court. Rani Brijmani and Sneh Lata filed a collective written statement. A separate written statement was filed by Km. Rai Pushp Lata, Defendant-3. They admittedly raised issue of jurisdiction of Ranchi Court alleging that Rai Sri Krishna did not acquire Schedule B(i) property situate in District Ranchi. It was also pleaded that Defendant-3 got a Will in her favour executed on 19.11.1980 by Rai Sri Krishna and said Will was registered on 28.11.1980, pursuant whereto, after death of Sri Rai Sri Krishna in 1982, Defendant-3, Km. Rai Pushp Lata, has become sole owner in possession of property of late Rai Sri Krishna, and plaintiff, Smt. Saroj Rani has no claim over said property. It was also pleaded that suit was barred by principle of res judicata as the matter was directly and substantially in issue in Original Suit No. 343 of 1971 decided by Court of Second Additional Munsif, Varanasi in which Rai Sri Krishna was plaintiff and Sardar Surendra Singh Johar, Smt. Saroj Rani and Km. Rai Pushp Lata, all were defendants. Suit was decided against Smt. Saroj Rani and her husband, Sardar Surendra Singh Johar and they were restrained from entering the property left by Rai Sri Krishna. For recording evidence it appears that Rani Brij Mani and Km. Rai Pushp Lata made application in the Court of Sub-Judge, Ranchi for appointment of Pleader Commission for their examination on commission at Varanasi which was allowed by Court on 24.04.1990. Pleader Commissioner visited appointed place at Varanasi but neither Km. Rai Pushp Lata nor Rani Brij Mani attended said Commissioner and hence no evidence could be recorded. Commission returned back and submitted report. Smt. Sneh Lata, who was Defendant-2 in said case, on her option, did not appear in the Court to tender any evidence. All the three defendants, therefore, did not attend proceeding in the Court of Sub-Judge, Ranchi and it is in this backdrop Court proceeded to decide suit after recording evidence of plaintiff, Smt. Saroj Rani vide judgment dated 13.06.1990 and made a declaration that plaintiff, Smt. Saroj

Rani had 1/4 share in Schedule property in plaint filed before Sub-Judge, Ranchi.

11. This fact that plaintiff, Km. Rai Pushp Lata who filed Original Suit No. 176 of 2000 had appeared in the Court of Sub-Judge, Ranchi, filed written statement and thereafter did not participate in further proceedings, is not disputed. This fact has also been noticed by Court below in judgment and order dated 12.04.2005 which is assailed in present appeal but it is not said that this fact is incorrect. Now it is in this backdrop we have to decide this appeal.

12. On the question of maintainability of appeal by subsequent purchaser, Sri B.P. Singh, learned Senior Advocate appearing for plaintiff-appellant submitted that original plaintiff having decided not to pursue case after rejection of plaint since disputed property during pendency of suit was sold to appellant, hence appellant preferred this appeal being aggrieved person and appeal at the instance of appellant, though he was not party in Court below, is maintainable. He further contended that late Rai Sri Krishna had no property in District Ranchi, therefore, Sub-Judge, Ranchi had no jurisdiction to make a declaration in respect of property situate entirely in District Varanasi and judgment and decree dated 13.06.1990 passed by Sub-Judge Fifth, Ranchi being wholly without jurisdiction, suit for such declaration was maintainable and in this case Section 21A CPC is not applicable. Trial Court in taking otherwise view has erred in law. He lastly submitted that judgment passed by Sub-Judge, Ranchi has been obtained by playing fraud and fraud vitiates everything, therefore, suit at Varanasi is maintainable and plaint could not have been rejected.

13. Learned counsel appearing for respondents, on the contrary, submitted that judgment of Sub-Judge, Ranchi is not an ex parte judgment in the sense that matter has been decided in absence of plaintiff, Km. Rai Pushp Lata or other respondents. Dispute relates to family property of late Rai Sri Krishna. When suit was filed in the Court of Sub-Judge, Ranchi, legal heirs of late Rai Sri Krishna were his wife and three daughters. Smt. Saroj Rani was residing at Ranchi having married Sardar Surendra Singh Johar. Remaining three legal heirs were impleaded as Defendants-1,2 and 3. After service of notice upon them, they actually appeared before Court of Sub-Judge, Ranchi, filed their written statements to contest the matter. Thereafter, Rani Brij Mani and Km. Rai Pushp Lata filed applications in the Court of Sub-Judge, Ranchi requesting that their oral evidence may be recorded through Pleader Commissioner. It was allowed by Court. Pleader Commissioner actually visited Varanasi but they (Rani Brij Mani and Km. Rai Pushp Lata) did not turn up to get their oral evidence recorded. In fact, after filing of written statement evidence of plaintiff was already recorded by Court below but defendants failed to adduce any evidence. Hence, Court proceeded to decide matter in absence of defendants after considering pleadings and evidence led by plaintiff, Smt. Saroj Rani in the Court of Sub-Judge, Ranchi which remained uncontroverted. The matter was decided accordingly. Proper remedy available to defendants in proceedings before Sub-Judge, Ranchi thus, to file appeal against aforesaid judgment but that was not preferred. It is also not the case of Km. Rai Pushp Lata that she was not aware when Suit No. 154 of 1985 was decided by Sub-Judge Fifth, Ranchi and that information was received by her at some later point of time. In the entire plaint no such fact has been stated. It is also not stated that alleged fraud that late Rai Sri Krishna had no property at Ranchi and that this fact stated clandestinely and falsely without notice to plaintiff, Km. Rai Pushp Lata in the plaint filed in the Court of Sub-Judge, Ranchi, and, factum of this fraud has come to the notice of Km. Rai Pushp Lata at some later point of time. Apparently, therefore, plaint

in question is barred by Section 21A and judgment and decree passed by Sub-Judge, Ranchi cannot be challenged after almost more than 9 years on the ground of lack of jurisdiction.

14. From rival submissions, in our view, following two points for determination have arisen:

> (I) Whether Court below has rightly held that plaint in question is barred under Order VII Rule 11(d) CPC in view of Section 21A CPC. (II) Whether plaint in question ought not to have been decided without proceeding on merits as Defendants-5, 6 and 7 had obtained judgment and decree dated 13.06.1990 in Suit No. 154 of 1985, as claimed by present plaintiff, by playing fraud.

15. Section 21A was inserted by Act 104 of 1976 w.e.f. 01.02.1977 and reads as under:

> "21A. Bar on Suit to set aside decree on objection as to place of suing .- No suit shall lie challenging the validity of a decree passed in a former suit between the same parties, or between the parties under whom they or any of them claim, litigating under the same title, on any ground based on an objection as to the place of suing. Explanation : The expression "former suit" means a suit which has been decided prior to the decision in the suit in which the validity of the decree is questioned, whether or not the previously decided suit was instituted prior to the suit in which the validity of such decree is questioned."

16. Suit filed in the Court of Sub-Judge, Ranchi had following parties:

> Smt. Saroj Rani - Plaintiff Rani Brij Mani - Defendant-1 Sheh Lata - Defendant-2 Rai Pushp Lata - Defendant-3

17. In the suit in question filed at Varanasi by Km. Rai Pushp Lata she is plaintiff. Sneh Lata and her two sons and daughter are Defendants-1 to 4. Since Smt. Saroj Rani had expired in the meantime, her husband, Sardar Surendra Singh Johar; Sani Johar, son; and; Km. Samta Johar, daughter have been impleaded as Defendants-5, 6 and 7. Therefore, parties in both suits can safely be said that they are same or parties under whom they or any of them claim and litigating under same title. Earlier suit in the Court of Sub-Judge, Ranchi was filed for declaration of 1/4 share while suit in question was filed at Varanasi for declaration that decree passed by Sub-Judge Fifth, Ranchi on 20.06.1990 in Suit No. 154 of 1985 is illegal and void, being without jurisdiction. Property involved in both matters admittedly is same inasmuch as before Ranchi it was in addition to property described in plaint in present suit. Objection with regard to territorial jurisdiction and factum that late Rai Sri Krishna did not acquire any property at Ranchi was taken by defendants including plaintiff in present suit, i.e., Km. Rai Pushp Lata, before the Court of Sub-Judge, Ranchi but she did not adduce any evidence in support of her claim. Matter has been decided against her. In our view, Section 21A CPC is clearly attracted in the case in hand and judgment of Ranchi Court cannot be allowed to be challenged on the ground of lack of territorial jurisdiction. The judgment of Court at Ranchi has to be construed as if the objection about jurisdiction raised by defendants therein stands rejected. The only remedy available to defendants therein is/was by way of appeal and not by filing

fresh suit seeking declaration that decree passed by Court in earlier case is void for want of territorial jurisdiction.

18. Section 21A CPC was brought on statute book in order to curtail multiplicity of litigation on technical grounds when a matter has already been decided between same parties. Interpreting the provisions as were available prior to insertion of Section 21A, various High Courts like, Madras, Lahore, Nagpur and Chief Court of Oudh had taken a view that if objection relating to territorial jurisdiction has not been taken earlier before Court below and decree is passed, such objection will not be allowed to be taken in subsequent suit. The judgment of Chief Court Oudh was rendered in Sheikh Maqsood Ali and another Vs. H. Hunter and others, AIR 1943 Oudh 338 and similar view was reiterated in Chitranjan Prasad Varma and Ors. vs. The Additional Commissioner of Varanasi Division and Ors., AIR 1967 All. 375. The amendment has virtually made this law as part of statute. Purpose of insertion of Section 21A has been considered in Subhash Mahadevasa Habib vs. Nemasa Ambasa Dharmadas (D) by LRs. and Ors., AIR 2007 SC 1828 and Court has observed that this restriction may not be confined only to territorial jurisdiction but can also be extended to pecuniary jurisdiction. Declaration under Section 21A is clear and categorical and in our view is applicable with full force in the case in hand, therefore, Court below has rightly rejected plaint by referring to Order VII Rule 11(d) that matter is barred by law and we answer Point-1 formulated above against appellant.

19. So far as Point-2 is concerned, in our view, same has not arisen in the matter for the reason that this very objection was raised by plaintiff, Km. Rai Pushp Lata in the Court of Sub-Judge, Ranchi by filing written statement but she failed to adduce any evidence to support her objection. Rather Smt. Saroj Rani, plaintiff in the Court of Sub-Judge, Ranchi adduced her evidence and on that basis suit was decided by Sub-Judge, Ranchi. Had it been a case where this fraud would have been discovered by present plaintiff at any subsequent stage, position might have been different but that is not the case before us since no such fact has been pleaded in the plaint and, therefore, in our view, though law in respect of an order, if obtained by playing fraud, is very clear that fraud vitiates everything, therefore, order obtained by fraud can always be challenged, but said exposition of law has no application in the present case for the reason that alleged fraud was pleaded by plaintiff in the Court of Sub-Judge, Ranchi but having failed to adduce any evidence to support her objection, it cannot be allowed to play a second inning by filing a suit after more than nine years seeking declaration that earlier judgment and decree is void ab initio for want of jurisdiction. We, therefore, answer Point-2 also against appellant.

20. There is one more aspect on which though matter has not been examined by Court below but we find that this objection is a statutory obligation to be seen by Court itself and, therefore, necessary to be observed hereat.

21. Section 3 of Indian Limitation Act, 1963 (hereinafter referred to as "Act, 1963") makes it obligatory upon a Court not to entertain a proceeding including suit, appeal or application which is apparently barred by limitation. In the present case, Sub-Judge, Ranchi decided Suit No. 154 of 1985 on 13.06.1990. Plaintiff instituted suit in question filing its plaint dated 24.04.2000, i.e., almost after a little less than 10 years. Plaintiff has sought a declaration that decree passed by Sub-Judge,

Ranchi be declared as void ab initio having no legal consequences, lacking jurisdiction. Limitation prescribed for a suit relating to declaration in respect of a decree is three years as provided under Article 59 of Act, 1963. Limitation had to commence from the date of knowledge of decree. Plaintiff has not made a single averment in the entire plaint that judgment and decree dated 13.06.1990 passed by Sub-Judge Fifth, Ranchi came to her knowledge on a date which could have prima facie brought the suit instituted by plaintiff, Km. Rai Pushp Lata within the aforesaid period of limitation i.e. the date when plaint was filed in the Court at Varanasi. Therefore, apparently suit is barred by limitation also and this is another reason justifying rejection of plaint under Order VII Rule 11(d).

22. Learned Senior Counsel appearing for appellant submitted that principal relief sought in plaint is not for declaration with regard to judgment and decree dated 13.06.1990 and 20.06.1990, passed by Court of Sub-Judge Fifth, Ranchi in Original Suit No. 154 of 1985, but for an injunction against defendants-respondents that they should not interfere, alienate etc. in respect of property in dispute. However, from bare reading of prayer made in plaint, we find no substance in the submission and, in our view, it need be rejected by simply noticing the same. A clear declaration has been sought by plaintiff that judgment and decree dated 13.06.1990 and 20.06.1990 in Suit No. 154 of 1985 being a judgment and decree without jurisdiction is invalid and illegal since inception and, therefore, is not binding upon plaintiff or on her property. In addition thereto by using the word ",oe" (and) injunction was also sought, therefore, it is a consequential relief to declaration sought by plaintiff. Substantial relief is in respect of judgment and decree passed by Court at Ranchi and without such declaration injunction as prayed for could not have been granted. "

23. With regard to maintainability of appeal by Sri Pradeep Kumar Bajaj, who is a subsequent purchaser from Km. Rai Pushp Lata, who filed suit in question, learned counsel appearing for respondents have not raised any serious objection and, therefore, we decide this appeal treating it to be maintainable at the instance of Sri Pradeep Kumar Bajaj, who has purchased land in dispute from original plaintiff during pendency of matter before Court below. Even otherwise, in law, it has been held repeatedly that an appeal under Section 96 and 100 CPC from every decree, at the instance of a person who is aggrieved by judgment sought to be appealed, is maintainable. On this aspect there is no serious dispute raised by learned counsel appearing for respondents, therefore, we hold that appeal at the instance of Pradeep Kumar Bajaj is maintainable.

24. No other point has been argued.

25. In view of above discussion, appeal has no merit. Judgment of Court below rejecting plaint, we find having been passed in the light of clear provision of law which is applicable in the case in hand, therefore, warrants no interference.

26. Appeal is accordingly dismissed with costs.

Order Date :-06.07.2018 AK